

25VECV02475 25VECV02475

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-14

Motion: DEFENDANT AHANG MIRHOJAE'S MOTION TO COMPEL FORM INTERROGATORIES, SET ONE, FROM PLAINTIFFS LORENA RANGEL DE REYES, CARLOS REYES, DEREK RANGEL, SERGIO REYES, EDUARDO REYES, JEFFREY GARCIA, AND DAVID PINEDA

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Case Number: 25VECV02475 Hearing Date: September 14, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LORENA RANGEL DE REYES, an individual; CARLOS REYES, an individual; DEREK RANGEL, an individual; SERGIO REYES, an individual; EDUARDO REYES, an individual; JEFFREY GARCIA, an individual; and DAVID PINEDA, an individual,

Plaintiff,

vs.

AHANG MIRHOJAE, an individual, aka Ahang Zarin Kelk; ALI REZA MIRSHOJAE and NASTARAN ZARRIN KELK, aka Nastavan Zarrin Kauppinen, Co-Trustees of the Jason B. Mirshojae Trust u/t/d/ June 19, 2019; and DOES 1 through 25, inclusive,

Defendants.

CASE NO: 25VECV02475

[TENTATIVE] ORDER RE:

DEFENDANT AHANG MIRHOJAE'S MOTION TO COMPEL FORM INTERROGATORIES, SET ONE, FROM PLAINTIFFS LORENA RANGEL DE REYES, CARLOS REYES, DEREK RANGEL, SERGIO REYES, EDUARDO REYES, JEFFREY GARCIA, AND DAVID PINEDA

Dept. W

8:30 a.m.

September 14, 2026

[TENTATIVE] ORDER: The Court GRANTS Moving Defendant's Motion to Compel Responses to Form Interrogatories, Set One. The Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions. Finally, Moving Defendant is ordered to pay the outstanding filing fees for this motion.

Background

This is a habitability case. Defendants are Moving Defendant Ahang Mirshojae, Defendant Ali Reza Mirshojae, and Defendant Nastaran Zarrin Kelk, Co-Trustees of the Jason B. Mirshojae Trust. Defendants own a 10-bedroom rental property located at 21909 Elkwood Street, Canoga Park, CA 91304. Plaintiffs, Lorena Rangel de Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, David Pineda, and Defendant Marvin Florian, were residents of this property from February 2020 to August of 2024. The primary lessors were Plaintiffs Lorena and Carlos Reyes.

Plaintiffs allege numerous habitability issues plagued this property, including: unscheduled rent increases, repeated plumbing breakdowns, Defendant Ahang growing marijuana in one of the guest rooms, multiple invasions of privacy by Defendant Ahang, electricity and water blackouts, and threats of physical violence by Defendant Ahang.

On May 2, 2025, Plaintiffs brought suit against Defendants, alleging eight causes of action: 1) wrongful eviction; 2) violation of CIV § 52.1; 3) breach of the covenant of quiet enjoyment; 4) breach of contract; 5) unfair competition; 6) violation of LA Municipal Code Chapter XV § 151.05(A); 7) breach of implied warranty of habitability; and 8) tortious failure to provide habitable premises.

On October 2, 2025, Moving Defendant propounded Form Interrogatories, Set One (herein, "FROGs"), onto Plaintiffs Lorena Rangel de Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, and David Pineda. Plaintiffs did not respond.

Now, Moving Defendant moves to compel verified responses to these initial discovery requests.

Procedural Issues

Before addressing the merits of this motion, the Court notes that Moving Defendant's motion is procedurally improper. Moving Defendant has brought a Motion to Compel FROGs as to seven plaintiffs simultaneously. The Government Code, and the Court Reservation System, requires a separate hearing date reservation and filing fees for each motion. Further, it is mandatory for court clerks to demand and receive filing fees for each motion. (See Gov. Code § 70617(f); *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Moving Defendant has only paid one filing fee for what is functionally seven motions. This circumvents the Court's requirements and the strictures of the Government Code. For this reason, the Court is inclined to deny Moving Defendant's omnibus motion. Alternatively, Moving Defendant is ordered to pay all additional required motion fees prior to the Court granting these motions.

Discussion

If the Court is inclined to rule of the merits of this motion....

i) Discovery

Moving Defendant moves to compel responses to the FROGs served on all seven of these Plaintiffs. (Mot. to Compel Initial, p. 2:5-11.)

Under § 2030.260. If a party to whom the interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses to the interrogatories. (CCP § 2030.290(b).)

Here, Moving Defendant propounded FROGs onto all seven Plaintiffs on October 2, 2025. (Do Decl. ¶ 2.) Initial responses were due by November 3, 2025. (Id. ¶ 3.) Following multiple extensions, the final response time for these requests was set for April 3, 2026. (Id. ¶ 6.) As of the filing of this motion, none of the seven served Plaintiffs had provided any responses. (Id. ¶ 7.) Additionally, no plaintiffs oppose this motion.

For these reasons, the Court GRANTS Moving Defendant's Motion to Compel Responses to Form Interrogatories, Set One.

ii) Sanctions

Moving Defendant also requests \$886.65 in discovery sanctions in conjunction with this motion. (Mot. to Compel Initial, p. 8:2-7.)

Sanctions are mandatory in connection with motions to compel interrogatories, unless the non-complying party acted with substantial justification or other circumstances make the imposition sanctions unjust. (CCP § 2030.290(c).)

However, this motion was improperly brought against seven separate Plaintiffs, and it is unclear which Plaintiffs Moving Defendant seeks sanctions against. Notably, Moving Defendant's sanctions analysis repeatedly references "plaintiff" in the singular. (See, e.g., Mot. to Compel Initial, p. 7.) Given this ambiguity, the Court finds that the imposition of sanctions would be inappropriate.

For these reasons, the Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions.

Conclusion

The Court GRANTS Moving Defendant's Motion to Compel Responses to Form Interrogatories, Set One. The Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions. Finally, Moving Defendant is ordered to pay the outstanding filing fees for this motion.

IT IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 14, 2026

Judge of the Superior Court

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LORENA RANGEL DE

REYES, an individual; CARLOS REYES, an individual; DEREK RANGEL, an

individual; SERGIO REYES, an individual; EDUARDO REYES, an individual; JEFFREY

GARCIA, an individual; and DAVID PINEDA, an individual,

Plaintiff,

vs.

AHANG MIRHOJAE, an individual, aka Ahang

Zarin Kelk; ALI REZA MIRSHOJAE and NASTARAN ZARRIN KELK, aka Nastavan Zarrin

Kauppinen, Co-Trustees of the Jason B. Mirshojae Trust u/t/d/ June 19, 2019;

and DOES 1 through 25, inclusive,

Defendants.

CASE NO: 25VECV02475

[TENTATIVE]

ORDER RE:

DEFENDANT

AHANG MIRHOJAE'S MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE, ADMITTED AS

TO PLAINTIFFS LORENA RANGEL DE REYES, CARLOS REYES, DEREK RANGEL, SERGIO
REYES, EDUARDO REYES, JEFFREY GARCIA, AND DAVID PINEDA

Dept. W

8:30 a.m.

September 14, 2026

[TENTATIVE] ORDER: The Court GRANTS

Moving Defendant's Motion to Deem RFAs admitted as to Plaintiffs Lorena Rangel
de Reyes, Derek Rangel, Eduardo Reyes, Jeffrey Garcia, and David Pineda. The
Court DENIES Moving Defendant's Motion to Deem RFAs admitted as MOOT as to
Plaintiffs Carlos Reyes and Sergio Reyes. The Court DENIES Moving Defendant's
request for \$886.65 in discovery sanctions. Finally, Moving Defendant is
ordered to pay the outstanding filing fees for this motion.

Background

This

is a habitability case. Defendants are Moving Defendant Ahang Mirshojae, Defendant
Ali Reza Mirshojae, and Defendant Nastaran Zarrin Kelk, Co-Trustees of the
Jason B. Mirshojae Trust. Defendants own a 10-bedroom rental property located
at 21909 Elkwood Street, Canoga Park, CA 91304. Plaintiffs, Lorena Rangel de
Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia,
David Pineda, and Defendant Marvin Florian, were residents of this property

from February 2020 to August of 2024. The primary lessors were Plaintiffs

Lorena and Carlos Reyes.

Plaintiffs allege numerous habitability issues plagued this property,

including: unscheduled rent increases, repeated plumbing breakdowns, Defendant

Ahang growing marijuana in one of the guest rooms, multiple invasions of

privacy by Defendant Ahang, electricity and water blackouts, and threats of

physical violence by Defendant Ahang.

On May 2, 2025, Plaintiffs brought suit against Defendants, alleging

eight causes of action: 1) wrongful eviction; 2) violation of CIV § 52.1; 3)

breach of the covenant of quiet enjoyment; 4) breach of contract; 5) unfair

competition; 6) violation of LA Municipal Code Chapter XV § 151.05(A); 7)

breach of implied warranty of habitability; and 8) tortious failure to provide

habitable premises.

On October 2, 2025, Moving Defendant propounded Requests for Admission,

Set One (herein, "RFAs"), onto Plaintiffs Lorena Rangel de Reyes, Carlos Reyes,

Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, and David Pineda.

Plaintiffs did not respond.

Now, Moving Defendant moves to have these RFAs deemed admitted.

Procedural Issues

Before addressing the

merits of this motion, the Court notes that Moving Defendant's motion is procedurally improper. Moving Defendant has brought a Motion to Deem RFAs admitted as to seven plaintiffs simultaneously. The Government Code, and the Court Reservation System, requires a separate hearing date reservation and filing fees for each motion. Further, it is mandatory for court clerks to demand and receive filing fees for each motion. (See Gov. Code § 70617(f); *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Moving Defendant has only paid one filing fee for what is functionally seven motions. This circumvents the Court's requirements and the strictures of the Government Code. For this reason, the Court is inclined to deny Moving Defendant's omnibus motion. Alternatively, Moving Defendant is ordered to pay all additional required motion fees prior to the Court granting these motions.

Discussion

If the Court is inclined to rule on the merits of this motion....

i)

Discovery

Moving Defendant moves to have the RFAs served on all seven of these Plaintiffs deemed admitted. (Mot. to Deem RFAs Admitted, p. 2:2-8.) Under CCP § 2033.280(b), if a party does not respond to a request for admissions in a timely fashion, the requesting party can move to have the

requests deemed admitted. (CCP § 2033.280(b).)

Here, Moving Defendant propounded RFAs, Set One, onto Plaintiffs on

October 2, 2025. (Do Decl. ¶ 2.) Initial responses were due by November 3,

2025. (Id. ¶ 3.) Following multiple extensions, the final response time for

these requests was set for April 3, 2026. (Id. ¶ 6.) As of the filing

of this motion, none of the seven served Plaintiffs had provided any responses.

(Id. ¶ 7.)

On September 10, 2026, Plaintiffs Sergio and Carlos Reyes filed late

declarations in opposition, stating that they had just served Moving Defendant

with verified responses to these RFAs without objections. (See, Opp. Re:

Carlos; see also, Opp. Re: Sergio.) While these opposition are untimely, they

do establish that Plaintiffs Carlos and Sergio have responded to these RFAs,

making this motion MOOT as to them. No other plaintiffs oppose this motion.

For these reasons, the Court GRANTS Moving Defendant's Motion to Deem

RFAs admitted as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel, Eduardo

Reyes, Jeffrey Garcia, and David Pineda.

The Court DENIES Moving Defendant's Motion to Deem RFAs admitted as

MOOT as to Plaintiffs Carlos Reyes and Sergio Reyes.

ii)

Sanctions

Moving Defendant also requests \$886.65 in discovery sanctions in conjunction with this motion. (Mot. to Deem RFAs Admitted, p. 6:2-6.)

Sanctions are mandatory in connection with motions to deem RFAs admitted unless the non-complying party acted with substantial justification or other circumstances make the imposition sanctions unjust. (CCP § 2033.280(c).)

However, this motion was improperly brought against seven separate Plaintiffs, and it is unclear which Plaintiffs Moving Defendant seeks sanctions against. Notably, Moving Defendant's sanctions analysis repeatedly references "plaintiff" in the singular. Given this ambiguity, the Court finds that the imposition of sanctions would be inappropriate.

For these reasons, the Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions.

Conclusion

The Court GRANTS Moving Defendant's Motion to Deem RFAs admitted as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel, Eduardo Reyes, Jeffrey Garcia, and David Pineda. The Court DENIES Moving Defendant's Motion to Deem RFAs admitted as MOOT as to Plaintiffs Carlos Reyes and Sergio Reyes. The Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions. Finally, Moving Defendant is ordered to pay the outstanding filing fees for this motion.

IT

IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 14, 2026

Judge of the Superior Court